

Seed — Additional Terms under AGPL-3.0

Copyright © HerauxValle Project Repository: <https://github.com/HerauxValle/Seed> Effective Date: 2025. Supersedes all prior versions.

Scope and Relationship to AGPL-3.0

The Software is licensed under the **GNU Affero General Public License, Version 3.0 (AGPL-3.0)**, the full text of which is provided in the LICENSE file. The AGPL-3.0 is the primary and governing license for all rights to use, modify, and distribute the Software.

This document contains **Additional Terms** as permitted by AGPL-3.0 Section 7. These terms operate alongside the AGPL-3.0 and are enforceable only to the extent that they fall within the categories of additional terms that Section 7 expressly permits. In the event of any conflict between these Additional Terms and the AGPL-3.0, the AGPL-3.0 governs. No provision of this document restricts, modifies, or supersedes the rights granted by the AGPL-3.0 beyond what Section 7 expressly allows.

License Compatibility Notice

This document does not grant any rights independently of the AGPL-3.0. It does not constitute a separate or standalone license. Rights to use, modify, copy, and distribute the Software are governed exclusively by the AGPL-3.0. This document provides supplementary attribution conditions, trademark-related conditions, user protections, patent terms, and other matters permitted under AGPL-3.0 Section 7 or enforceable independently as contractual terms accepted upon use of the Software.

PREAMBLE

Seed is a personal software project authored solely by HerauxValle (“Copyright Holder”). These Additional Terms are designed to keep the Software permanently free and open for personal, academic, and legitimate internal business use, and to establish clear attribution, trademark, and user protection standards alongside the AGPL-3.0.

Legal Basis

These Additional Terms operate on two bases:

(I) AGPL-3.0 Section 7 Additional Terms. The attribution conditions (Section 3) and the no-warranty disclaimer (Section 8) constitute additional terms permitted by AGPL-3.0 Section 7(b), 7(c), and 7(a) respectively. The trademark conditions in Section 3(e) are permitted under AGPL-3.0 Section 7(e). These are conditions of the copyright license and are enforceable as a matter of copyright law in conjunction with the AGPL-3.0, including under:

- The German *Urheberrechtsgesetz* (UrhG), in particular §§ 15, 16, 17, 19a, 97, and 101;
- The Copyright, Designs and Patents Act 1988 (UK), §§ 16–21;
- 17 U.S.C. §§ 101–122 (United States Copyright Act);
- The Copyright Act 1994 (New Zealand), Copyright Act 1968 (Australia), Copyright Act (Canada, R.S.C. 1985, c. C-42);
- All national implementations of the Berne Convention;
- Directive 2001/29/EC (EU Copyright Directive), Articles 2–4;
- Directive 2004/48/EC (Enforcement Directive).

(II) Contractual Obligations. Sections 6, 7, 11, and 13 impose contractual obligations that supplement the AGPL-3.0. A binding contract under § 145 *Bürgerliches Gesetzbuch* (BGB) and equivalent contract formation doctrines is formed upon **any** of the following acts, each constituting unambiguous acceptance:

- Downloading, cloning, forking, or mirroring the Software or any portion thereof;
- Installing, compiling, executing, or interacting with the Software;
- Distributing the Software or any Derivative Work;
- Accessing the Project Repository and taking any affirmative action beyond passive viewing of publicly displayed content.

This structure ensures that even if a court declines to enforce one basis, the other remains independently operative.

Governing Rights Theory

Under German law, the *Urheberrecht* (author's right) is inalienable and not separable from the author's person (UrhG § 29). Rights are granted to third parties only by way of *Nutzungsrechte* (rights of use). Pursuant to the *Zweckübertragungslehre* (purpose-of-transfer doctrine, UrhG § 31(5)), rights not expressly granted are reserved. No right shall be construed as granted by implication, estoppel, or otherwise.

SECTION 1 — DEFINITIONS

“Software” means the Seed source code, compiled binaries, object code, configuration files, documentation, blueprints, domain-specific language (DSL) specifications, scripts, container definitions, and all associated materials made available at the Project Repository, in any form and at any time, including all versions, releases, and pre-releases.

“Project Repository” means the official repository located at <https://github.com/HerauxValle/Seed> and any mirrors explicitly designated as official by the Copyright Holder by signed written notice published in that repository. No other mirror or copy constitutes a Project Repository.

“Copyright Holder” means HerauxValle, the original sole author and rights holder of the Software.

“You” means any individual or legal entity exercising any permission granted under the AGPL-3.0 or these Additional Terms, including any corporation, limited liability company, partnership, trust, cooperative, unincorporated association, government entity, or other legal entity. If You act on behalf of, at the direction of, or for the benefit of an organization, “You” encompasses that organization and You represent that You have authority to bind it. “Your” has the corresponding meaning.

“Derivative Work” has the meaning given in AGPL-3.0 and additionally includes any work that is based upon, derived from, incorporates, modifies, translates, adapts, transforms, extends, or supersedes the Software in whole or in part, by any means or in any form, including forks, ports, transpiled versions, obfuscated or minified versions, compiled output, wrappers, and launchers that package or embed the Software, and any work that would constitute a “derivative work” within the meaning of 17 U.S.C. § 101 or a “dependent work” (*abhängiges Werk*) within the meaning of UrhG § 3.

“Distribute” has the meaning given in AGPL-3.0 and includes making the Software or a Derivative Work available to any third party by any means, including publishing, uploading, packaging, embedding, offering for download, transmitting, bundling in another product, or deploying in a manner that allows third parties to receive, copy, or execute the Software.

“Network Service” means any deployment of the Software or a Derivative Work in which third parties access, execute, or benefit from the Software's functionality via a network connection, API endpoint, web interface, remote procedure call, or any other networked mechanism, regardless of whether those third parties receive a local copy of the Software. Network Service deployment triggers the AGPL-3.0's source publication requirement under its Section 13.

SECTION 2 — RIGHTS UNDER AGPL-3.0

All rights to use, copy, modify, and distribute the Software are governed exclusively by the **GNU Affero General Public License, Version 3.0**, the full text of which is in the LICENSE file. The AGPL-3.0 governs the scope, sublicensability, transferability, and termination of those rights. Nothing in these Additional Terms restricts, modifies, or expands those rights beyond what AGPL-3.0 Section 7 expressly permits.

These Additional Terms impose supplementary obligations in the categories permitted by AGPL-3.0 Section 7:

- **Section 3** imposes attribution and trademark conditions permitted by AGPL-3.0 §7(b), §7(c), and §7(e).
- **Section 6** provides user protections that operate alongside the AGPL-3.0.
- **Section 7** states a patent non-aggression covenant.
- **Sections 8 and 9** provide warranty disclaimers and liability limitations consistent with AGPL-3.0 §7(a).
- **Sections 11, 13, 15, and 16** impose contractual obligations and interpretive rules enforceable independently of copyright law upon contract formation as described in the Preamble.

No Additional Use Restrictions. These Additional Terms do not impose any restriction on the exercise of rights granted by the AGPL-3.0 beyond the categories listed in AGPL-3.0 Section 7. Any provision of these Terms that would, if enforced, restrict a right granted by AGPL-3.0 in a manner not permitted by AGPL-3.0 Section 7 is void and unenforceable to that extent, and the AGPL-3.0 governs exclusively.

SECTION 3 — ATTRIBUTION

The following are **mandatory conditions** of any Distribution of the Software or any Derivative Work, and of operation of any Network Service based on the Software or any Derivative Work. These conditions are permitted by AGPL-3.0 Section 7 and are enforceable as conditions of the copyright license. Failure to comply with these conditions is a violation of the AGPL-3.0 as supplemented by these Additional Terms.

(a) License Retention. You must retain both the LICENSE file (AGPL-3.0) and this TERMS.md file in their entirety, without any modification, deletion, or addition, in all copies and Derivative Works, including in compressed archives, container images, packaged installers, firmware images, and obfuscated distributions. Both files must remain in plaintext, human-readable form and must not be encoded, minified, transformed, compiled, or presented in any format that materially impairs readability by an ordinary person without specialized tools.

(b) Attribution Statement. You must include a clear, conspicuous, human-readable attribution statement in **all** of the following locations applicable to Your distribution or service:

- The top-level README or equivalent primary documentation file;
- Any “About,” “Credits,” “Acknowledgements,” or “Legal” screen or section within the Software’s interface;
- Any publicly visible product description, landing page, app store listing, or marketing material;
- Any installer, setup wizard, or first-run experience presented to end users;
- Any invoice, service agreement, or terms of service provided to end users of a Network Service based on the Software.

The required attribution statement is:

“Based on Seed by HerauxValle — <https://github.com/HerauxValle/Seed> — licensed under AGPL-3.0 with additional terms.”

This statement must be presented in a font size and color that is no less visible than the surrounding body text, in a location accessible to an ordinary user without unreasonable effort. It must not be buried in footnotes, hidden behind expansion controls, rendered in a color that blends with the background, placed in metadata not visible to users, or otherwise obscured by any technical or design means.

(c) Preservation of Notices. You must not remove, alter, obscure, encode, minify, comment out, translate away, or otherwise render less visible any copyright notices, authorship credits, license references, or hyperlinks to the Project Repository present in the Software’s source code, object code, configuration files, or documentation.

(d) Modification Disclosure. If You distribute a Derivative Work, You must clearly state in the documentation: (i) that the work is a modified version of Seed; (ii) the identity of the party who made the modifications; (iii) the date of the most recent modification; and (iv) a reasonably specific description of what was changed. You must not represent a Derivative Work as the original unmodified Software or as officially sponsored, endorsed, or affiliated with the Project Repository or the Copyright Holder.

(e) Name Restrictions. You must not use “Seed”, “Seed”, “sd”, or any name or mark confusingly similar thereto as the primary name or brand of a Derivative Work or of any product or service based thereon, in any manner that implies official origin, endorsement, or affiliation, without prior written permission signed by the Copyright Holder.

(f) No Identity Concealment. You must not distribute the Software or a Derivative Work under a different name, brand, or identity in a manner that obscures, removes, or replaces any visible connection to the original Software, the Copyright Holder, or the Project Repository. You may rebrand a Derivative Work with a distinct name, but all attribution obligations under Section 3(b) remain in full force regardless of rebranding.

SECTION 4 — SUPPLEMENTARY CONDITIONS AND COMMERCIAL LICENSING

(a) AI and Machine Learning — Contractual Restriction. As a contractual condition accepted upon use of the Software (see Preamble, Section II), You must not use the Software, any Derivative Work, or any substantial portion of the source code as training data, fine-tuning data, evaluation data, benchmark data, or reinforcement learning feedback for any artificial intelligence or machine learning model, system, product, or research project, without prior written permission signed by the Copyright Holder. This obligation applies to both commercial and non-commercial AI development and is enforceable as a contractual term independently of copyright law.

(b) No Attribution Circumvention. You must not structure any arrangement — including through intermediaries, rebranding, or multi-party deployments — for the purpose or with the effect of circumventing the attribution requirements of Section 3. The substance of attribution compliance governs over its form.

(c) Commercial Licensing. The AGPL-3.0 permits commercial use, including operating Network Services. The Copyright Holder (HerauxValle) retains the right to offer separate commercial licenses for parties who wish to use the Software under terms other than the AGPL-3.0 (for example, without the copyleft requirement or with additional support arrangements). If You wish to use the Software under a commercial license, contact the Copyright Holder at the Project Repository. No commercial license is granted by implication, estoppel, or course of conduct.

Note on AGPL-3.0 and Commercial Use. The AGPL-3.0 does not prohibit commercial use. It requires that any Derivative Work distributed or deployed as a Network Service be made available under the AGPL-3.0, including publication of corresponding source code. These Additional Terms do not impose restrictions on commercial use beyond what the AGPL-3.0 itself requires, except for the contractual AI/ML restriction in Section 4(a).

SECTION 5 — COPYLEFT (AGPL-3.0)

The copyleft requirements for the Software — including source availability upon distribution, source availability for Network Service deployments, and the requirement to license Derivative Works under the same terms — are governed by the **AGPL-3.0**, specifically Sections 4, 5, and 13 thereof. These Additional Terms do not alter those requirements.

For clarity:

(a) If You Distribute the Software or a Derivative Work, You must provide corresponding source code under the AGPL-3.0 as required by AGPL-3.0 Sections 4–6.

(b) If You operate a Network Service based on the Software or a Derivative Work, You must offer to provide the corresponding source code to users of that service as required by AGPL-3.0 Section 13.

(c) The AGPL-3.0’s definition of “Corresponding Source” governs what source materials must be provided. For the avoidance of doubt, this includes all modified and unmodified source files, build scripts, configuration files, and dependency manifests necessary to understand, reproduce, build, install, and run the Derivative Work.

(d) Contribution Route. Contributing a Derivative Work back to the Project Repository satisfies the AGPL-3.0’s source availability requirements with respect to that contribution, subject to the Copyright Holder’s acceptance. Acceptance of a contribution does not constitute endorsement.

SECTION 6 — USER PROTECTIONS

The following protections apply to all end users of the Software and any Derivative Work distributed by You or made available via a Network Service operated by You. These protections are enforceable as contractual conditions accepted upon use of the Software (see Preamble, Section II) and, where applicable, as conditions permitted by AGPL-3.0 Section 7. They may not be waived, overridden, contracted away, or superseded by any agreement between a distributor and a user. They survive termination of the distributor’s rights under the AGPL-3.0.

(a) No Lock-In. You must not distribute or deploy a version of the Software or any Derivative Work that — by technical means, contractual means, or any other mechanism — prevents or materially impedes a user from: (i) exporting their data, configurations, blueprints, container definitions, or application state in a documented, machine-readable, portable format using only tools included in or readily available for

the Derivative Work; (ii) switching to the original Software or any other software; or (iii) migrating to alternative tools of the user's choice. Any proprietary data format introduced by a Derivative Work that is used to store user data must be documented in human-readable form and must be exportable by the user at any time, without fee, without technical barrier, and without requiring permission from the distributor.

(b) No Tracking Without Consent. You must not add any telemetry, analytics, crash reporting, usage statistics, behavioral tracking, keystroke logging, network traffic monitoring, or any other form of data collection, transmission, or remote storage to a Derivative Work without: (i) providing a clear, prominent, standalone disclosure — presented before installation or first use, in plaintext, and not bundled with other terms — identifying exactly what data is collected, the purpose of collection, the retention period, the identity and location of all parties to whom data is transmitted or sold, and the user's rights under applicable data protection law, including Regulation (EU) 2016/679 (GDPR) Articles 13–22 and equivalent national law; and (ii) obtaining explicit, specific, freely given, informed, unambiguous opt-in consent from each user before any data collection begins. Consent obtained through: pre-ticked checkboxes; bundled consent with other terms; EULA click-through; or any interface design pattern that exploits cognitive biases to obtain consent (“dark patterns” as described in EDPB Guidelines 3/2022) does not constitute valid consent under this clause. Any collection of personal data must comply with GDPR and all applicable national data protection laws. You are the data controller for any personal data collected.

(c) No Paywalled Security. You must not restrict access to security patches, vulnerability fixes, cryptographic updates, or any correction that affects data integrity, data security, system stability, or user safety behind any paywall, subscription tier, license tier, or access restriction in any Derivative Work. All such fixes must be made available to all users at no cost, without delay, and under the AGPL-3.0 and these Additional Terms.

(d) No Deceptive Distribution. You must not distribute or deploy the Software or any Derivative Work in any manner designed or likely to mislead users about its origin, authorship, capabilities, licensing terms, security properties, or relationship to the Project Repository. You must not impersonate the Copyright Holder, claim to be the original author, claim official affiliation with the Project Repository, or represent a Derivative Work as the official Software.

(e) No Anti-User Modifications. You must not distribute or deploy a Derivative Work that has been modified to harm, surveil without disclosure and consent, defraud, manipulate, coerce, or act materially against the interests of its users. This includes without limitation: embedding malware, ransomware, spyware, backdoors, or unauthorized remote access capabilities; exfiltrating user data, credentials, secrets, or private keys; intentionally degrading performance to drive upgrade purchases; engaging in unauthorized cryptocurrency mining; restricting access to user data or functionality previously available without notice or compensation; or any conduct that would constitute a violation of consumer protection law in the user's jurisdiction, including the EU Unfair Commercial Practices Directive (2005/29/EC) or 15 U.S.C. § 45 (FTC Act, Section 5).

(f) No Silent Modification. You must not distribute or deploy a Derivative Work that silently modifies itself, downloads and installs additional software or code, or materially alters its own behavior — including its data collection practices, functionality, or security properties — without providing explicit prior notice to the user and obtaining the user's affirmative consent at the time the change occurs.

(g) Right to Source. Any user of a Derivative Work distributed by You or made available via a Network Service operated by You has the right to receive, upon written request submitted to You, the complete corresponding source code of the Derivative Work under the AGPL-3.0, at no charge, within fourteen (14) calendar days of the request. You must maintain the technical and organizational capacity to fulfill this obligation for the entire period during which You distribute or operate a Network Service based on the Derivative Work, and for two (2) years thereafter.

(h) Right to Attribution Information. Any user of a Derivative Work has the right to be informed, upon request, that the software is based on Seed and to be directed to the Project Repository. This right may not be waived by contract or technical means.

SECTION 7 — PATENT NON-AGGRESSION

(a) Covenant Not to Sue. As a condition of receiving and exercising any rights under the AGPL-3.0 and these Additional Terms, You covenant, for the benefit of the Copyright Holder, all contributors to the Project Repository, and all other users of the Software, not to assert, threaten to assert, or authorize any third party to assert, any patent claim against any of the foregoing parties arising from or related to: (i) the Software; (ii) any Derivative Work; (iii) the act of using, modifying, or distributing the Software or any Derivative Work; or (iv) the act of operating a Network Service based on the Software or any Derivative Work.

(b) Automatic Termination Upon Litigation. If You initiate, join, or materially support any patent litigation (including a counterclaim or cross-claim) against any party alleging that the Software, a Derivative Work, or the act of using, modifying, or distributing the Software

or a Derivative Work, infringes any patent, Your rights under the AGPL-3.0 and the contractual relationship under these Additional Terms terminate automatically and without notice effective on the date such litigation is filed or joined, as applicable.

(c) Defensive Suspension. If the Copyright Holder or any contributor is sued for patent infringement by a third party in connection with the Software, the Copyright Holder may, at their discretion and upon written notice, suspend the non-aggression covenant in Section 7(a) with respect to that third party only, for the duration of the litigation.

SECTION 8 — NO WARRANTY

THE SOFTWARE IS PROVIDED “AS IS,” WITHOUT WARRANTY OF ANY KIND, EXPRESS OR IMPLIED. TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW — INCLUDING UrhG § 31 ET SEQ., §§ 434–445 BGB (SALES LAW WARRANTIES, EXCLUDED TO THE MAXIMUM EXTENT PERMITTED FOR SOFTWARE), AND EQUIVALENT PROVISIONS UNDER APPLICABLE NATIONAL LAW — THE COPYRIGHT HOLDER EXPRESSLY DISCLAIMS ALL WARRANTIES, INCLUDING BUT NOT LIMITED TO: WARRANTIES OF MERCHANTABILITY (*HANDELSÜBLICHKEIT*); FITNESS FOR A PARTICULAR PURPOSE; TITLE; NON-INFRINGEMENT; ACCURACY OF DOCUMENTATION; ABSENCE OF DEFECTS; SECURITY; OR SUITABILITY FOR USE IN ANY ENVIRONMENT.

THE ENTIRE RISK AS TO THE QUALITY, PERFORMANCE, SECURITY, AND FITNESS OF THE SOFTWARE IS WITH YOU. SHOULD THE SOFTWARE PROVE DEFECTIVE, YOU ASSUME THE ENTIRE COST OF ALL NECESSARY SERVICING, REPAIR, CORRECTION, OR REPLACEMENT.

Nothing in this Section limits the Copyright Holder’s liability for fraud, willful misconduct (*Vorsatz*), or gross negligence (*grobe Fahrlässigkeit*) to the extent that such liability cannot be excluded under applicable law (including § 309 No. 7 BGB and equivalent consumer protection provisions).

SECTION 9 — LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, IN NO EVENT SHALL THE COPYRIGHT HOLDER BE LIABLE FOR ANY DAMAGES OF ANY KIND WHATSOEVER ARISING OUT OF OR IN CONNECTION WITH THE USE, INABILITY TO USE, DISTRIBUTION, MODIFICATION, OR OPERATION OF THE SOFTWARE, INCLUDING BUT NOT LIMITED TO: DIRECT, INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, PUNITIVE, OR CONSEQUENTIAL DAMAGES; LOSS OF PROFITS OR REVENUE; LOSS OF DATA; BUSINESS INTERRUPTION; SYSTEM FAILURE; DATA CORRUPTION; SECURITY INCIDENTS; LOSS OF GOODWILL; OR PROCUREMENT OF SUBSTITUTE GOODS OR SERVICES — EVEN IF THE COPYRIGHT HOLDER HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGE.

THIS LIMITATION APPLIES REGARDLESS OF THE LEGAL THEORY ASSERTED, INCLUDING CONTRACT, TORT (INCLUDING NEGLIGENCE OR GROSS NEGLIGENCE), STRICT LIABILITY, STATUTE (*GEFÄHRDUNGSHAFTUNG*), OR OTHERWISE, AND REGARDLESS OF WHETHER ANY REMEDY FAILS OF ITS ESSENTIAL PURPOSE.

WHERE APPLICABLE LAW MANDATES LIABILITY THAT CANNOT BE EXCLUDED — INCLUDING LIABILITY FOR FRAUDULENT CONCEALMENT OF DEFECTS (*ARGLISTIGES VERSCHWEIGEN*, § 444 BGB), PERSONAL INJURY, OR LIABILITY UNDER THE GERMAN PRODUCT LIABILITY ACT (*PRODUKTHAFTUNGSGESETZ*) OR EQUIVALENT LEGISLATION — THE COPYRIGHT HOLDER’S LIABILITY IS LIMITED TO THE MINIMUM EXTENT REQUIRED BY LAW.

SECTION 10 — LIABILITY FOR VIOLATIONS

Each party is liable for their own violations of the AGPL-3.0 and these Additional Terms under applicable law, including liability for copyright infringement, breach of contract, and any other applicable legal theory. Nothing in these Additional Terms limits the remedies available to the Copyright Holder or to end users under the AGPL-3.0 or applicable law for violations committed by You.

The Copyright Holder does not accept liability for violations committed by third parties who independently receive the Software under the AGPL-3.0.

SECTION 11 — TERMS OF USE

The following terms govern all use of the Software, including use that does not involve Distribution. They take effect upon contract formation as described in the Preamble.

(a) Lawful Use Only. You must not use the Software for any purpose that violates applicable local, national, or international law or regulation, including data protection law, export control law, sanctions law, consumer protection law, competition law, and criminal law. Unlawful use constitutes a material breach of the contractual obligations in these Additional Terms and may constitute a violation of the AGPL-3.0, triggering termination under AGPL-3.0 Section 8.

(b) No Misrepresentation. You must not represent Yourself as the author or Copyright Holder of the Software, claim official affiliation with the Project Repository, or impersonate the Copyright Holder in any context — including in communications with users, in press releases, in regulatory filings, or in legal proceedings — without prior written permission signed by the Copyright Holder.

(c) No Weaponization. You must not use the Software as part of any system, tool, workflow, or service designed, adapted, or used to: attack, disrupt, compromise, surveil without authorization, stalk, harass, defraud, coerce, or otherwise harm any individual, organization, or infrastructure. Prohibited uses include without limitation: malware, spyware, ransomware, unauthorized access tools, credential harvesting systems, phishing infrastructure, botnet command-and-control systems, distributed denial-of-service systems, or any tool used to conduct a cyberattack within the meaning of Directive (EU) 2016/1148 (NIS Directive), the Computer Fraud and Abuse Act (18 U.S.C. § 1030), or equivalent national law.

(d) No Waiver. The Copyright Holder's failure to enforce any provision of the AGPL-3.0 or these Additional Terms at any time, or to require compliance with any provision, does not constitute a waiver of that provision or of the right to enforce it at any later time. No waiver of any provision of these Additional Terms is valid unless made in a separate written instrument signed by the Copyright Holder and expressly identifying the waived provision, the scope of the waiver, and its duration.

(e) Entire Agreement on Additional Terms. These Additional Terms, together with the AGPL-3.0 (the full text of which is in the LICENSE file), constitute the entire agreement between You and the Copyright Holder with respect to the Software. These Additional Terms supersede all prior or contemporaneous agreements relating to the matters they cover. No amendment or modification of these Additional Terms is binding unless made in accordance with Section 15.

(f) Severability. Addressed in Section 14.

(g) No Third-Party Beneficiaries. Except for the user protections in Section 6 (which are expressly for the benefit of end users), no provision of these Additional Terms creates any third-party beneficiary rights. Section 6 protections may be enforced by end users against distributors of Derivative Works as third-party beneficiaries to the extent permitted by applicable law.

SECTION 12 — TERMINATION

(a) Termination of AGPL-3.0 Rights. Termination of Your rights to use, copy, modify, and distribute the Software is governed by AGPL-3.0 Section 8. A breach of the attribution conditions in Section 3 of these Additional Terms constitutes a violation of the AGPL-3.0 (since those conditions are imposed as AGPL §7 additional terms), and termination of AGPL-3.0 rights follows automatically as set out in AGPL-3.0 Section 8. This is consistent with the nature of copyright conditions under applicable law, including under UrhG and 17 U.S.C. § 501.

Termination of Contractual Obligations. A material breach of the contractual obligations in Sections 4(a), 6, 7, 11, and 13 of these Additional Terms terminates the contractual relationship formed under the Preamble, independently of the AGPL-3.0.

(b) Cure Period — Contractual Breaches Only. For breaches of the contractual obligations in Sections 4(a), 6, 7, 11, and 13 of these Additional Terms, You are entitled to a cure period of fourteen (14) calendar days from the date on which You first become aware or are notified of the breach, during which You may remedy the breach and thereby avoid termination of the contractual relationship. This cure period does not apply to repeated breaches, willful violations, or breaches that caused material harm to the Copyright Holder or to end users. The cure period does not apply to breaches of the attribution conditions in Section 3, which are governed by AGPL-3.0 Section 8.

(c) Obligations Upon Termination. Upon termination of Your AGPL-3.0 rights or the contractual relationship under these Additional Terms, You must immediately: (i) cease all use, operation, Distribution, and provision of Network Services based on the Software and any Derivative Works to the extent those acts depended on the terminated rights; (ii) permanently delete or destroy all copies of the Software and all Derivative Works in Your possession, custody, or control, including backup copies, archived copies, and copies on cloud storage; and (iii) within seven (7) days of termination, notify all known downstream recipients of Your Derivative Work in writing that Your rights have terminated due to Your violation, and that such downstream recipients may obtain rights directly from the Copyright Holder by independently complying with the AGPL-3.0 and these Additional Terms.

(d) Downstream Rights. As provided in AGPL-3.0 Section 10, each time You distribute the Software or a Derivative Work, recipients automatically receive a license from the original licensors directly under the AGPL-3.0. Termination of Your rights does not terminate the rights of recipients who independently comply with the AGPL-3.0 and these Additional Terms.

(e) Discretionary Reinstatement. As provided in AGPL-3.0 Section 8, AGPL rights may be reinstated automatically upon cure or by express notice from the copyright holder. With respect to the contractual obligations in these Additional Terms, the Copyright Holder may at their sole and absolute discretion reinstate the contractual relationship upon express written notice. Such reinstatement is not a waiver and does not prejudice the Copyright Holder's right to terminate again for the same or any subsequent violation. Reinstatement does not retroactively legitimize any infringing use that occurred during the period of termination.

(f) Survival. The following Sections of these Additional Terms survive termination indefinitely: 1 (Definitions), 8 (No Warranty), 9 (Limitation of Liability), 10 (Liability for Violations), 11 (Terms of Use, except §11(a) which applies only to active use), 6 (User Protections, enforceable by end users), 7 (Patent Non-Aggression), 12 (Termination), 13 (Governing Law), 14 (Severability), and any accrued claims for damages or injunctive relief.

SECTION 13 — GOVERNING LAW AND JURISDICTION

(a) Governing Law. These Additional Terms and all contractual matters arising from or relating to them — including their formation, validity, interpretation, enforceability, breach, and termination — are governed by and construed in accordance with the laws of the Federal Republic of Germany, including the *Urheberrechtsgesetz* (UrhG), the *Bürgerliches Gesetzbuch* (BGB), and applicable European Union law, without regard to any conflict-of-law rules or choice-of-law principles that would cause the law of any other jurisdiction to apply. Copyright enforcement actions arising from the AGPL-3.0 are additionally governed by the *lex loci protectionis* principle as noted in Section 13(d).

(b) Jurisdiction — General. Subject to Section 13(c) and (d), the parties irrevocably submit to the exclusive jurisdiction of the courts of competent subject-matter jurisdiction for the Copyright Holder's place of residence in Bavaria, Federal Republic of Germany, for the resolution of all disputes arising from or related to these Additional Terms or the Software.

(c) Consumer Protection — EU. Notwithstanding Section 13(b), where You are an individual acting as a consumer within the meaning of Regulation (EU) No 1215/2012 (Brussels I Recast), Articles 17–19, You retain the right to bring proceedings in the courts of Your place of domicile within the European Union, and to benefit from the mandatory consumer protection provisions of the law of Your habitual residence that cannot be derogated from by contract under Regulation (EC) No 593/2008 (Rome I), Article 6. Nothing in these Additional Terms diminishes any rights You have as a consumer under applicable EU or national consumer protection law.

(d) Enforcement Rights of Copyright Holder. Nothing in this Section prevents the Copyright Holder from: - (i) seeking emergency injunctive relief, *einstweilige Verfügung* (preliminary injunction), or equivalent provisional measures in any jurisdiction where a violation is occurring or is threatened, pursuant to Article 35 of Brussels I Recast or applicable local procedural law; - (ii) enforcing any judgment obtained in connection with these Additional Terms or the AGPL-3.0 in any jurisdiction where You maintain assets, through applicable enforcement conventions including Regulation (EU) No 1215/2012 and bilateral enforcement treaties; - (iii) bringing copyright infringement proceedings in any jurisdiction in which the infringement occurred, pursuant to the *lex loci protectionis* principle under private international law and Article 8 of Rome II Regulation (Regulation (EC) No 864/2007).

(e) Language. These Additional Terms are drafted in English. The English text is the authoritative version. Any translation is provided for convenience only and has no legal effect. In the event of any conflict between the English text and any translation, the English text prevails.

SECTION 14 — SEVERABILITY

14.1 — General Severability

If any provision of these Additional Terms is held invalid, void, or unenforceable by a court of competent jurisdiction, that provision shall be modified to the minimum extent necessary to make it enforceable, or if modification is not possible, it shall be severed. The remaining provisions remain in full force and effect. The invalidity of any provision of these Additional Terms does not affect the validity of the AGPL-3.0 or of the remaining provisions of these Additional Terms.

14.2 — Fallback to AGPL-3.0

If any provision of these Additional Terms is held unenforceable in a given jurisdiction, the rights of the parties with respect to the subject matter of that provision are governed exclusively by the AGPL-3.0. The invalidity of any Additional Term shall not be construed to expand the rights of any licensee beyond what the AGPL-3.0 grants. In no circumstance does invalidity of an Additional Term result in the application of any license more permissive than the AGPL-3.0.

14.3 — User Protections Survive Severance

If any provision of Section 6 is held unenforceable as between a distributor and the Copyright Holder, it remains enforceable by end users as third-party beneficiaries to the maximum extent permitted by applicable law. This is self-executing and requires no further action by the Copyright Holder.

SECTION 15 — AMENDMENTS AND VERSIONING

(a) Amendment Formality. No modification of these Additional Terms is valid unless made in a written instrument signed by the Copyright Holder and expressly identifying itself as an amendment to these Additional Terms.

(b) New Versions. The Copyright Holder may publish updated versions of these Additional Terms. Each version will be identified by a version number. Updated versions will be published in the Project Repository.

(c) Version Election. If You obtained a copy of the Software when an earlier version of these Additional Terms was in effect, You may continue to use, distribute, and modify that copy under the terms of the version in effect at that time. However, **any new copy, fork, or Distribution made after the publication of an updated version must comply with the most recently published version of these Additional Terms at the time of that act.** The obligation to comply with the latest version applies to the *act of distribution*, not merely to the copy.

(d) Notice of Updates. The Copyright Holder will provide reasonable notice of material amendments by updating this file in the Project Repository and incrementing the version number. It is Your responsibility to check for updates before making new Distributions.

SECTION 16 — ANTI-ABUSE PROVISIONS

(a) Interpretation Against Circumvention. These Additional Terms shall be interpreted in the manner that best gives effect to their stated purpose — ensuring proper attribution, protecting users, and preserving the integrity of the original project — and in the manner least favorable to any party seeking to circumvent their requirements. Where the text is ambiguous, the interpretation that most effectively upholds those purposes shall be preferred.

(b) Burden of Proof. Where a dispute arises as to whether an act complies with the attribution conditions of Section 3 or the contractual obligations of Section 4(a), the burden of demonstrating compliance rests with the party claiming it. The Copyright Holder need only demonstrate that a plausible violation has occurred.

(c) Good Faith Obligation. All parties exercising rights under the AGPL-3.0 and these Additional Terms must do so in good faith (*Treu und Glauben*, § 242 BGB; equivalent duty under applicable national law). Structuring arrangements to technically comply with the letter of a provision while violating its spirit constitutes bad faith and is prohibited.

(d) Repeat Violations. A licensee who violates these Additional Terms on more than one occasion, whether or not the contractual relationship was reinstated between violations, is not entitled to cure periods under Section 12(b) for any subsequent violation and is not eligible for reinstatement under Section 12(e) without the Copyright Holder’s express written consent.

(e) Injunctive Relief. Given the unique nature of intellectual property rights, any breach of the attribution conditions in Section 3 or of these Additional Terms would cause the Copyright Holder irreparable harm for which monetary damages may be an inadequate remedy. The Copyright Holder is therefore entitled to seek injunctive relief, specific performance, and other equitable remedies from any court of competent jurisdiction in addition to any other remedies available at law. This reflects the Copyright Holder’s rights under UrhG § 97 and equivalent provisions worldwide.

(f) Attorneys’ Fees. In any litigation or arbitration arising from a breach of these Additional Terms in which the Copyright Holder substantially prevails, You agree to reimburse the Copyright Holder for all reasonable legal fees and costs, including court costs and expert witness fees, subject to applicable law.

SECTION 17 — CONTACT AND COMMERCIAL LICENSING

The AGPL-3.0 permits commercial use of the Software, including operating commercial Network Services, provided You comply with the AGPL-3.0’s copyleft requirements (including source publication) and with the attribution and other conditions in these Additional Terms.

If You wish to use the Software under **different terms** — for example, without the AGPL-3.0’s copyleft requirement (i.e., without being required to publish source code for Your Derivative Work or Network Service), or under a custom support or partnership arrangement — You may contact the Copyright Holder to discuss a separate commercial license.

Commercial licensing inquiries: <https://github.com/HerauxValle/Seed>

No alternative license is granted by implication, estoppel, or course of conduct. Only a separate signed written license agreement constitutes a valid alternative license.

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